

#	Case Name	
1	Avery vs. GN Netcom, Inc. 2023-01323352	Motion to Appear Pro Hac Vice Defendant GN Audio USA, Inc.’s motion for an order granting the application of Simon Fleischmann to appear as counsel pro hac vice is granted. The unopposed application satisfies the requirements of Rule of Court 9.40. Simon Fleischmann is granted pro hac vice admission to this court to represent the defendant in this action. Defendant shall give notice of the ruling.
2	Bastani vs. Khatami 2022-01291818	Motion to Compel Deposition (Oral or Written) Plaintiff Victoria Bastani’s motion to compel the deposition of Defendant Nasir Khatami is granted. Plaintiff objections are sustained as to Nos. 3, 4, 6, 7, 11, 12, and 13 and overruled as to the remainder. (ROA 406.) Code of Civil Procedure section 2025.450 provides a party noticing a deposition “may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice” if, “after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).) Defendant objects to the taking of Defendant Nasir Khatami’s deposition due to health concerns and requests instead that Plaintiff stipulate to Mr. Khatami answering written questions in lieu of sitting for an oral deposition. Code Civ. Proc., § 2025.420 provides that if good cause is shown, the court can order that a deponent’s testimony be taken by written instead of oral examination. (Subd. (6).) And, Code Civ. Proc., §

2017.020(a) states that “[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.”

Defendants argue in opposition to the motion that there is good cause justifying a written examination, because Mr. Khatami has severe physical disabilities and is largely confined to his bed due to spinal injury, seizures, kidney disease, heart disease, and pulmonary issues. Additionally, Defendants state that he has psychotic depression, debilitating anxiety, and suicidal ideation.

Defendants submit two brief doctor notes from November of 2024, from an internal medicine doctor and a psychiatrist. (ROA 384, 385.) Dr. Nazemi advises that Mr. Khatami avoid stressful environments as “they could exacerbate his severe medical and mental conditions, potentially endangering his life,” and Dr. Chaffee states that Mr. Khatami “suffers from severe psychotic depression,” and “has fatigue, poor concentration, memory impairment, delusions, and hallucinations,” and “will be unable to sit and accurately respond to an oral deposition.” Neither doctor points to any specific medical records supporting these statements.

The only other evidence submitted from a medical professional is a declaration from Mr. Khatami’s son-in-law, a neurologist and psychiatrist. (ROA 390.) The Court is hesitant to rely on this declaration given the familial relationship between the declarant and Mr. Khatami.

Defendant Mina Khatami, Nasir’s wife and caregiver submits a lengthy declaration as well. (ROA 388.) The Court questions the credibility of Mrs. Khatami, as she declares that at her daughter’s wedding in 2021, Mr. Khatami was unable to participate, and only “stood up from his seat during the wedding for a brief moment to ‘dance.’” Mrs. Khatami declares that she “held his arms as he swayed to the music before [she] assisted him in sitting back down.” (Khatami Decl., ¶ 15.) In reply, Plaintiff submits a flash drive showing a video from Defendants’ daughter’s wedding in 2021 (Supp. Kleindienst Ex. J.) that shows Mr. Khatami up and dancing without assistance, contradicting Mrs. Khatami’s declaration.

Further contradicting Defendants’ claims regarding the stress that participating in this litigation would cause, is the fact that Mr. Khatami voluntarily attended a third-party deposition remotely on 9/4/24. (Supp. Kleindienst ¶ 9.)

		To be sure, the Court is sympathetic to Defendant’s concerns regarding his deposition, as well as his health conditions. With that said, the Court finds Defendant’s recent medical records to be the most persuasive and relevant. These records reflect Defendant’s treatment in January and February of this year (contrasted with Plaintiff’s evidence that is all dated prior.) In these medical records, dated 2/14/25, 2/10/25, 1/31/25, 1/29/25, 1/27/25, and 1/23/25, Defendant is described as “alert,” “cooperative,” “fully oriented,” “not anxious or depressed,” and “feel[ing] better.” (Supp. Kleindienst Ex. N at 5, 10, 17, 28-29, 40, 51, 61-62, 75, 96.) The records repeatedly state Defendant is “negative for dizziness, syncope, weakness, lightheadedness and headaches” and “negative for confusion, hallucinations and suicidal ideas.” (<i>Id.</i> at 4, 16, 27, 39, 50, 60.) In sum, the Court finds that Defendants fail to establish that Mr. Khatami’s health is such that he is unable to provide accurate testimony or that a deposition would be so dangerous to his health as to outweigh Plaintiff’s right to take his deposition. The parties are ordered to meet and confer on the parameters of Defendant’s deposition in order to best accommodate his conditions and minimize any potential stress. The Plaintiff and Defendant are ordered to meet and confer regarding Defendant’s chosen place for the deposition as well as the length and timing (e.g., if morning or afternoon is better, and if there should be a maximum number of hours per day). Defendant is ordered to appear for his deposition on a date, or dates, agreeable to both sides within 45 days of this ruling. Plaintiff shall give notice.
3	Bazil vs. California Automobile Insurance Company 2024-01403685	1. Motion to Strike Portions Of Complaint The motion by Defendant California Automobile Insurance Company (“Defendant”) for an order striking the punitive damages allegations and prayer for punitive damages from the First Amended Complaint (“FAC”) filed by Plaintiff Roderick Bazil (“Plaintiff”) is granted with 15 days leave to amend. Pursuant to Code of Civil Procedure section 436, the Court may: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.